



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

DEC 17 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12317

EXPIRATION DATE: **November 30, 2001**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Archimica Fine Chemicals
Gainesville, FL
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of hexamethyldisilazane in stainless steel DOT Specification 57 portable tanks. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243(c) in that a DOT 57 portable tank is authorized.
5. BASIS: This exemption is based on the application of Archimica, Fine Chemicals dated July 8, 1999 and additional information dated November 16, 1999, submitted in accordance with § 107.105 and the public proceeding thereon.

DEC 17 1999

Continuation of DOT-E 12317

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquid, corrosive, (hexamethyldisilazane)	3	UN2924	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are stainless steel DOT 57 portable tanks with a: minimum design pressure of 9.5 psig; a pressure relief device setting of 5 psig; and a maximum capacity of 275 gallons. Frangible devices are not authorized to be used as pressure relief devices.

b. OPERATIONAL CONTROLS -

(1) No new construction of tanks is authorized.

(2) Tanks must be retested and reinspected in accordance with 49 CFR § 173.32(e) as prescribed for DOT 57 portable tanks.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each portable tank must be plainly and durably marked "DOT-E 12317" as specified in § 172.302.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

DEC 17 1999

Continuation of DOT-E 12317

Page 3

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Transportation is limited to private or contract carriers.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the

holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

DEC 17 1999
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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